

**CITY OF CHEYENNE
ADMINISTRATIVE GUIDELINES**

**GAMBLING - TOURNAMENT-STYLE POKER EVENTS
PERMITTED IF AUTHORIZED BY STATE LAW**

The following criteria is used as an administrative guideline when considering applications to the City Clerk for a gambling permit for a tournament-style poker event, as provided by City Code Section 9.08.030, to be held at an establishment open to the public, including city-owned and managed buildings such as the Ice and Events Center or Cheyenne-Kiwanis Community House, or in a private club at a game at which guests are participating.

CRITERIA:

1. Eligible participants: Must be 21 years of age or older.
2. Permit application must be signed by the organizer of the tournament-style poker event. Any poker event to be held on city-owned and managed property must receive prior approval by the Mayor.
 - a. Applicants will be required to sign an Affidavit and Authorization statement. An affidavit signed by the owner or proprietor of the facility in which the proposed tournament-style poker event will be held must be submitted with the application and include acknowledgment that the owner or proprietor approves of the tournament-style poker event being held within or upon their facility; that the owner or proprietor acknowledges he or she has reviewed a copy of the city ordinance and administrative guidelines associated with tournament-style poker events, and that the owner or proprietor agree to comply with applicable provisions of the ordinance and guidelines during any tournament-style poker event held within or upon the facility.
 - b. If a tournament-style poker event is to be held in a city-owned and managed facility, applicants will be required to sign a written release, indemnification and hold harmless agreement.
 - c. Applications must be approved by the Chief of Police or their designee. The Chief of Police reserves the right to deny approval of any application for the health, safety and welfare of the public.
 - d. If a tournament-style poker event is held within a city-owned and managed facility, application must be approved by the responsible department head or their designee. Use, including any required deposit, of the facility for the activity for which a permit is requested must be in accordance with Department facility reservation policies.

3. In receiving a permit, the applicant agrees they are assuming all responsibility in connection with the permit, and may not transfer or delegate any authority to another person or organization.
4. The applicant is liable for strict adherence to applicable Federal, state and local laws governing the permit. Issuance of a permit does not reflect a decision by the City that the tournament-style poker event is a legal gaming activity pursuant to state law; applicants are responsible for compliance with all laws.
5. The Chief of Police may impose any recommendations, conditions or requirements deemed necessary concerning permit activities affiliated with a tournament-style poker event or fund raiser.
6. No more than one tournament-style poker event shall be held per permit within a 24 hour period.
7. A copy of the permit must be on site during any tournament-style poker event and available for inspection by any law enforcement officers.
8. All rules relating to the play of the game must be conspicuously posted where players may see them.
9. All monies collected for the tournament-style poker event must go back to the players. These monies may be held by either a player or the permittee for safekeeping until the payout at the end of the game.
 - a. All winnings must be announced prior to the start of the game (i.e. 1st place is 50% of monies collected; 2nd place is 30%; 3rd place is 20%).
 - b. Dealers must be active players in the game and can not accept compensation, such as tips or a cut of the pot.
 - c. No additional fees will be collected for the play of the game and no food or beverage purchases will be required to participate in the game.
 - d. No more than one (1) re-buy-in per player is allowed during each tournament-style poker event with any re-buy-in provisions explicitly described in the posted rules.
 - e. No side bets between players can be made and there shall be no cash on the tables at any time.
10. Following issuance of a permit, if a tournament-style poker event is cancelled or rescheduled, a new permit application will be required in conjunction with City Clerk business licensing/permitting practices.